

## CHAPTER I

### SEARCH FOR THE PUBLIC

If one wishes to realize the distance which may lie between "facts" and the meaning of facts, let one go to the field of social discussion. Many persons seem to suppose that facts carry their meaning along with themselves on their face. Accumulate enough of them, and their interpretation stares out at you. The development of physical science is thought to confirm the idea. But the power of physical facts to coerce belief does not reside in the bare phenomena. It proceeds from method, from the technique of research and calculation. No one is ever forced by just the collection of facts to accept a particular theory of their meaning, so long as one retains intact some other doctrine by which he can marshal them. Only when the facts are allowed free play for the suggestion of new points of view is any significant conversion of conviction as to meaning possible. Take away from physical science its laboratory apparatus and its mathematical technique, and the human imagination might run wild in its theories of interpretation even if we suppose the brute facts to remain the same.

In any event, social philosophy exhibits an immense gap between facts and doctrines. Compare, for ex-

ample, the facts of politics with the theories which are extant regarding the nature of the state. If inquirers confine themselves to observed phenomena, the behavior of kings, presidents, legislators, judges, sheriffs, assessors and all other public officials, surely a reasonable consensus is not difficult to attain. Contrast with this agreement the differences which exist as to the basis, nature, functions and justification of the state, and note the seemingly hopeless disagreement. If one asks not for an enumeration of facts, but for a definition of the state, one is plunged into controversy, into a medley of contradictory clamors. According to one tradition, which claims to derive from Aristotle, the state is associated and harmonized life lifted to its highest potency; the state is at once the keystone of the social arch and is the arch in its wholeness. According to another view, it is just one of many social institutions, having a narrow but important function, that of arbiter in the conflict of other social units. Every group springs out of and realizes a positive human interest; the church, religious values; guilds, unions and corporations material economic interests, and so on. The state, however, has no concern of its own; its purpose is formal, like that of the leader of the orchestra who plays no instrument and makes no music, but who serves to keep other players who do produce music in unison with one another. Still a third view has it that the state is organized oppression, at once a social excrescence, a

parasite and a tyrant. A fourth is that it is an instrument more or less clumsy for keeping individuals from quarreling too much with one another. }

Confusion grows when we enter subdivisions of these different views and the grounds offered for them. In one philosophy, the state is the apex and completion of human association, and manifests the highest realization of all distinctively human capacities. The view had a certain pertinency when it was first formulated. It developed in an antique city-state, where to be fully a free man and to be a citizen participating in the drama, the sports, the religion and the government of the community were equivalent affairs. But the view persists and is applied to the state of to-day. Another view coördinates the state with the church (or as a variant view slightly subordinates it to the latter) as the secular arm of Deity maintaining outward order and decorum among men. A modern theory idealizes the state and its activities by borrowing the conceptions of reason and will, magnifying them till the state appears as the objectified manifestation of a will and reason which far transcend the desires and purposes which can be found among individuals or assemblages of individuals.

We are not concerned, however, with writing either a cyclopedia or history of political doctrines. So we pause with these arbitrary illustrations of the proposition that little common ground has been discovered between the factual phenomena of political behavior

and the interpretation of the meaning of these phenomena. One way out of the impasse is to consign the whole matter of meaning and interpretation to political philosophy as distinguished from political science. Then it can be pointed out that futile speculation is a companion of all philosophy. The moral is to drop all doctrines of this kind overboard, and stick to facts verifiably ascertained.

The remedy urged is simple and attractive. But it is not possible to employ it. Political facts are not outside human desire and judgment. Change men's estimate of the *value* of existing political agencies and forms, and the latter change more or less. The different theories which mark political philosophy do not grow up externally to the facts which they aim to interpret; they are amplifications of selected factors among those facts. Modifiable and altering human habits sustain and generate political phenomena. These habits are not wholly informed by reasoned purpose and deliberate choice—far from it—but they are more or less amenable to them. Bodies of men are constantly engaged in attacking and trying to change some political habits, while other bodies of men are actively supporting and justifying them. It is mere pretense, then, to suppose that we can stick by the *de facto*, and not raise at some points the question of *de jure*: the question of by what right, the question of legitimacy. And such a question has a way of growing until it has become a question as to the nature of the state itself.

The alternatives before us are not factually limited science on one hand and uncontrolled speculation on the other. The choice is between blind, unreasoned attack and defense on the one hand, and discriminating criticism employing intelligent method and a conscious criterion on the other.

The prestige of the mathematical and physical sciences is great, and properly so. But the difference between facts which are what they are independent of human desire and endeavor and facts which are to some extent what they are because of human interest and purpose, and which alter with alteration in the latter, cannot be got rid of by any methodology. The more sincerely we appeal to facts, the greater is the importance of the distinction between facts which condition human activity and facts which are conditioned by human activity. In the degree which we ignore this difference, social science becomes pseudo-science. Jeffersonian and Hamiltonian political ideas are not merely theories dwelling in the human mind remote from facts of American political behavior. They are expressions of chosen phases and factors among those facts, but they are also something more: namely, forces which have shaped those facts and which are still contending to shape them in the future this way and that. There is more than a speculative difference between a theory of the state which regards it as an instrument in protecting individuals in the rights they already have, and one which conceives its function to

be the effecting of a more equitable distribution of rights among individuals. For the theories are held and applied by legislators in congress and by judges on the bench and make a difference in the subsequent facts themselves.

I make no doubt that the practical influence of the political philosophies of Aristotle, the Stoics, St. Thomas, Locke, Rousseau, Kant and Hegel has often been exaggerated in comparison with the influence of circumstances. But a due measure of efficacy cannot be denied them on the ground which is sometimes proffered; it cannot be denied on the ground that ideas are without potency. For ideas belong to human beings who have bodies, and there is no separation between the structures and processes of the part of the body that entertains the ideas and the part that performs acts. Brain and muscles work together, and the brains of men are much more important data for social science than are their muscular system and their sense organs.

It is not our intention to engage in a discussion of political philosophies. The concept of the state, like most concepts which are introduced by "The," is both too rigid and too tied up with controversies to be of ready use. It is a concept which can be approached by a flank movement more easily than by a frontal attack. The moment we utter the words "The State" a score of intellectual ghosts rise to obscure our vision. Without our intention and without our notice, the notion of "The State" draws us imperceptibly into a

consideration of the logical relationship of various ideas to one another, and away from facts of human activity. It is better, if possible, to start from the latter and see if we are not led thereby into an idea of something which will turn out to implicate the marks and signs which characterize political behavior.

There is nothing novel in this method of approach. But very much depends upon what we select from which to start and very much depends upon whether we select our point of departure in order to tell at the terminus what the state *ought* to be or what it *is*. If we are too concerned with the former, there is a likelihood that we shall unwittingly have doctored the facts selected in order to come out at a predetermined point. The phase of human action we should *not* start with is that to which direct causative power is attributed. We should not look for state-forming forces. If we do, we are likely to get involved in mythology. To explain the origin of the state by saying that man is a political animal is to travel in a verbal circle. It is like attributing religion to a religious instinct, the family to marital and parental affection, and language to a natural endowment which impels men to speech. Such theories merely reduplicate in a so-called causal force the effects to be accounted for. They are of a piece with the notorious potency of opium to put men to sleep because of its dormitive power.

The warning is not directed against a man of straw. The attempt to derive the state, or any other social

institution, from strictly "psychological" data is in point. Appeal to a gregarious instinct to account for social arrangements is the outstanding example of the lazy fallacy. Men do not run together and join in a larger mass as do drops of quicksilver, and if they did the result would not be a state nor any mode of human association. The instincts, whether named gregariousness, or sympathy, or the sense of mutual dependence, or domination on one side and abasement and subjection on the other, at best account for everything in general and nothing in particular. And at worst, the alleged instinct and natural endowment appealed to as a causal force themselves represent physiological tendencies which have previously been shaped into habits of action and expectation by means of the very social conditions they are supposed to explain. Men who have lived in herds develop attachment to the horde to which they have become used; children who have perforce lived in dependence grow into habits of dependence and subjection. The inferiority complex is socially acquired, and the "instinct" of display and mastery is but its other face. There are structural organs which physiologically manifest themselves in vocalizations as the organs of a bird induce song. But the barking of dogs and the song of birds are enough to prove that these native tendencies do not generate language. In order to be converted into language, native vocalization requires transformation by extrinsic conditions, both organic and extra-organic or

environmental: formation, be it noted, not just stimulation. The cry of a baby can doubtless be described in purely organic terms, but the wail becomes a noun or verb only by its consequences in the responsive behavior of others. This responsive behavior takes the form of nurture and care, themselves dependent upon tradition, custom and social patterns. Why not postulate an "instinct" of infanticide as well as one of guidance and instruction? Or an "instinct" of exposing girls and taking care of boys?

We may, however, take the argument in a less mythological form than is found in the current appeal to social instincts of one sort or another. The activities of animals, like those of minerals and plants, are correlated with their structure. Quadrupeds run, worms crawl, fish swim, birds fly. They are made that way; it is "the nature of the beast." We do not gain anything by inserting instincts to run, creep, swim and fly between the structure and the act. But the strictly organic conditions which lead men to join, assemble, foregather, combine, are just those which lead other animals to unite in swarms and packs and herds. In describing what is common in human and other animal junctions and consolidations we fail to touch what is distinctively human in human associations. These structural conditions and acts may be *sine qua nons* of human societies; but so are the attractions and repulsions which are exhibited in inanimate things. Physics and chemistry as well as zoölogy may inform

us of some of the conditions without which human beings would not associate. But they do not furnish us with the *sufficient* conditions of community life and of the forms which it takes.

We must in any case start from acts which are performed, not from hypothetical causes for those acts, and consider their consequences. We must also introduce intelligence, or the observation of consequences *as* consequences, that is, in connection with the acts from which they proceed. Since we must introduce it, it is better to do so knowingly than it is to smuggle it in in a way which deceives not only the customs officer—the reader—but ourselves as well. We take then our point of departure from the objective fact that human acts have consequences upon others, that some of these consequences are perceived, and that their perception leads to subsequent effort to control action so as to secure some consequences and avoid others. Following this clew, we are led to remark that the consequences are of two kinds, those which affect the persons directly engaged in a transaction, and those which affect others beyond those immediately concerned. In this distinction we find the germ of the distinction between the private and the public. When indirect consequences are recognized and there is effort to regulate them, something having the traits of a state comes into existence. When the consequences of an action are confined, or are thought to be confined, mainly to the persons directly engaged in it, the transaction is a

private one. When A and B carry on a conversation together the action is a trans-action: both are concerned in it; its results pass, as it were, across from one to the other. One or other or both may be helped or harmed thereby. But, presumably, the consequences of advantage and injury do not extend beyond A and B; the activity lies between them; it is private. Yet if it is found that the consequences of conversation extend beyond the two directly concerned, that they affect the welfare of many others, the act acquires a public capacity, whether the conversation be carried on by a king and his prime minister or by Cataline and a fellow conspirator or by merchants planning to monopolize a market.

The distinction between private and public is thus in no sense equivalent to the distinction between individual and social, even if we suppose that the latter distinction has a definite meaning. Many private acts are social; their consequences contribute to the welfare of the community or affect its status and prospects. In the broad sense any transaction deliberately carried on between two or more persons is social in quality. It is a form of associated behavior and its consequences may influence further associations. A man may serve others, even in the community at large, in carrying on a private business. To some extent it is true, as Adam Smith asserted, that our breakfast table is better supplied by the convergent outcome of activities of farmers, grocers and butchers carrying

on private affairs with a view to private profit than it would be if we were served on a basis of philanthropy or public spirit. Communities have been supplied with works of art, with scientific discoveries, because of the personal delight found by private persons in engaging in these activities. There are private philanthropists who act so that needy persons or the community as a whole profit by the endowment of libraries, hospitals and educational institutions. In short, private acts may be socially valuable both by indirect consequences and by direct intention.

There is therefore no necessary connection between the private character of an act and its non-social or anti-social character. The public, moreover, cannot be identified with the socially useful. One of the most regular activities of the politically organized community has been waging war. Even the most bellicose of militarists will hardly contend that all wars have been socially helpful, or deny that some have been so destructive of social values that it would have been infinitely better if they had not been waged. The argument for the non-equivalence of the public and the social, in any praiseworthy sense of social, does not rest upon the case of war alone. There is no one, I suppose, so enamored of political action as to hold that it has never been short-sighted, foolish and harmful. There are even those who hold that the presumption is always that social loss will result from agents of the public doing anything which could be done by persons in their

private capacity. There are many more who protest that some special public activity, whether prohibition, a protective tariff or the expanded meaning given the Monroe Doctrine, is baleful to society. Indeed every serious political dispute turns upon the question whether a given political act is socially beneficial or harmful.

Just as behavior is not anti-social or non-social because privately undertaken, it is not necessarily socially valuable because carried on in the name of the public by public agents. The argument has not carried us far, but at least it has warned us against identifying the community and its interests with the state or the politically organized community. And the differentiation may dispose us to look with more favor upon the proposition already advanced: namely, that the line between private and public is to be drawn on the basis of the extent and scope of the consequences of acts which are so important as to need control, whether by inhibition or by promotion. We distinguish private and public buildings, private and public schools, private paths and public highways, private assets and public funds, private persons and public officials. It is our thesis that in this distinction we find the key to the nature and office of the state. It is not without significance that etymologically "private" is defined in opposition to "official," a private person being one deprived of public position. The public consists of all those who are affected by the indirect consequences of

transactions to such an extent that it is deemed necessary to have those consequences systematically cared for. Officials are those who look out for and take care of the interests thus affected. Since those who are indirectly affected are not direct participants in the transactions in question, it is necessary that certain persons be set apart to represent them, and see to it that their interests are conserved and protected. The buildings, property, funds, and other physical resources involved in the performance of this office are *res publica*, the common-wealth. The public as far as organized by means of officials and material agencies to care for the extensive and enduring indirect consequences of transactions between persons is the *Populus*.

It is a commonplace that legal agencies for protecting the persons and properties of members of a community, and for redressing wrongs which they suffer, did not always exist. Legal institutions derive from an earlier period when the right of self-help obtained. If a person was harmed, it was strictly up to him what he should do to get even. Injuring another and exacting a penalty for an injury received were private transactions. They were the affairs of those directly concerned and nobody else's direct business. But the injured party obtained readily the help of friends and relatives, and the aggressor did likewise. Hence consequences of the quarrel did not remain confined to those immediately concerned. Feuds ensued, and the blood-quarrel might implicate large numbers and endure for

generations. The recognition of this extensive and lasting embroilment and the harm wrought by it to whole families brought a public into existence. The transaction ceased to concern only the immediate parties to it. Those indirectly affected formed a public which took steps to conserve its interests by instituting composition and other means of pacification to localize the trouble.

The facts are simple and familiar. But they seem to present in embryonic form the traits that define a state, its agencies and officers. The instance illustrates what was meant when it said that it is fallacy to try to determine the nature of the state in terms of direct causal factors. Its essential point has to do with the enduring and extensive consequences of behavior, which like all behavior proceeds in ultimate analysis through individual human beings. Recognition of evil consequences brought about a common interest which required for its maintenance certain measures and rules, together with the selection of certain persons as their guardians, interpreters, and, if need be, their executors.

If the account given is at all in the right direction, it explains the gap already mentioned between the facts of political action and theories of the state. Men have looked in the wrong place. They have sought for the key to the nature of the state in the field of agencies, in that of doers of deeds, or in some will or purpose back of the deeds. They have sought to explain

the state in terms of authorship. Ultimately all deliberate choices proceed from somebody in particular; acts are performed by somebody, and all arrangements and plans are made by somebody in the most concrete sense of "somebody." Some John Doe and Richard Roe figure in every transaction. We shall not, then, find the public if we look for it on the side of originators of voluntary actions. Some John Smith and his congeners decide whether or not to grow wheat and how much, where and how to invest money, what roads to build and travel, whether to wage war and if so how, what laws to pass and which to obey and disobey.

The actual alternative to deliberate acts of individuals is not action by the public; it is routine, impulsive and other unreflected acts also performed by individuals.

Individual human beings may lose their identity in a mob or in a political convention or in a joint-stock corporation or at the polls. But this does not mean that some mysterious collective agency is making decisions, but that some few persons who know what they are about are taking advantage of massed force to conduct the mob their way, boss a political machine, and manage the affairs of corporate business. When the public or state is involved in making social arrangements like passing laws, enforcing a contract, conferring a franchise, it still acts through concrete persons. The persons are now officers, representatives of a public and shared interest. The difference is an important one. But it is not a difference between single human

beings and a collective impersonal will. It is between persons in their private and in their official or representative character. The quality presented is not authorship but authority, the authority of recognized consequences to control the behavior which generates and averts extensive and enduring results of weal and woe. Officials are indeed public agents, but agents in the sense of factors doing the business of others in securing and obviating consequences that concern them.

When we look in the wrong place we naturally do not find what we are looking for. The worst of it is, however, that looking in the wrong place, to causal forces instead of consequences, the outcome of the looking becomes arbitrary. There is no check on it. "Interpretation" runs wild. Hence the variety of conflicting theories and the lack of consensus of opinion. One might argue *a priori* that the continual conflict of theories about the state is itself proof that the problem has been wrongly posed. For, as we have previously remarked, the main facts of political action, while the phenomena vary immensely with diversity of time and place, are not hidden even when they are complex. They are facts of human behavior accessible to human observation. Existence of a multitude of contradictory theories of the state, which is so baffling from the standpoint of the theories themselves, is readily explicable the moment we see that all the theories, in spite of their divergence from one another, spring

from a root of shared error: the taking of causal agency instead of consequences as the heart of the problem.

Given this attitude and postulate, some men at some time will find the causal agency in a metaphysical *nisus* attributed to nature; and the state will then be explained in terms of an "essence" of man realizing itself in an end of perfected Society. Others, influenced by other preconceptions and other desires, will find the required author in the will of God reproducing through the medium of fallen humanity such an image of divine order and justice as the corrupt material allows. Others seek for it in the meeting of the wills of individuals who come together and by contract or mutual pledging of loyalties bring a state into existence. Still others find it in an autonomous and transcendent will embodied in all men as a universal within their particular beings, a will which by its own inner nature commands the establishment of external conditions in which it is possible for will to express outwardly its freedom. Others find it in the fact that mind or reason is either an attribute of reality or is reality itself, while they condole that difference and plurality of minds, individuality, is an illusion attributable to sense, or is merely an appearance in contrast with the monistic reality of reason. When various opinions all spring from a common and shared error, one is as good as another, and the accidents of education, temperament, class interest and the dominant circumstances of the age decide which is

adopted. Reason comes into play only to find justification for the opinion which has been adopted, instead of to analyze human behavior with respect to its consequences and to frame politics accordingly. It is an old story that natural philosophy steadily progressed only after an intellectual revolution. This consisted in abandoning the search for causes and forces and turning to the analysis of what is going on and how it goes on. Political philosophy has still in large measure to take to heart this lesson.

The failure to note that the problem is that of perceiving in a discriminating and thorough way the consequences of human action (including negligence and inaction) and of instituting measures and means of caring for these consequences is not confined to production of conflicting and irreconcilable theories of the state. The failure has also had the effect of perverting the views of those who, up to a certain point, perceived the truth. We have asserted that all deliberate choices and plans are finally the work of single human beings. Thoroughly false conclusions have been drawn from this observation. By thinking still in terms of causal forces, the conclusion has been drawn from this fact that the state, the public, is a fiction, a mask for private desires for power and position. Not only the state but society itself has been pulverized into an aggregate of unrelated wants and wills. As a logical consequence, the state is conceived either as sheer oppression born of arbitrary power and sustained in

fraud, or as a pooling of the forces of single men into a massive force which single persons are unable to resist, the pooling being a measure of desperation since its sole alternative is the conflict of all with all which generates a life that is helpless and brutish. Thus the state appears either a monster to be destroyed or as a Leviathan to be cherished. In short, under the influence of the prime fallacy that the problem of the state concerns causal forces, individualism, as an ism, as a philosophy, has been generated.

While the doctrine is false, it sets out from a fact. Wants, choices and purposes have their locus in single beings; behavior which manifests desire, intent and resolution proceeds from them in their singularity. But only intellectual laziness leads us to conclude that since the form of thought and decision is individual, their content, their subject-matter, is also something purely personal. Even if "consciousness" were the wholly private matter that the individualistic tradition in philosophy and psychology supposes it to be, it would still be true that consciousness is of objects, not of itself. Association in the sense of connection and combination is a "law" of everything known to exist. Singular things act, but they act together. Nothing has been discovered which acts in entire isolation. The action of everything is along with the action of other things. The "along with" is of such a kind that the behavior of each is modified by its connection with others. There are trees which can grow only in a forest. Seeds

of many plants can successfully germinate and develop only under conditions furnished by the presence of other plants. Reproduction of kind is dependent upon the activities of insects which bring about fertilization. The life-history of an animal cell is conditioned upon connection with what other cells are doing. Electrons, atoms and molecules exemplify the omnipresence of conjoint behavior.

There is no mystery about the fact of association, of an interconnected action which affects the activity of singular elements. There is no sense in asking how individuals come to be associated. They exist and operate in association. If there is any mystery about the matter, it is the mystery that the universe is the kind of universe it is. Such a mystery could not be explained without going outside the universe. And if one should go to an outside source to account for it, some logician, without an excessive draft upon his ingenuity, would rise to remark that the outsider would have to be connected with the universe in order to account for anything in it. We should still be just where we started, with the fact of connection as a fact to be accepted.

There is, however, an intelligible question about human association:—Not the question how individuals or singular beings come to be connected, but how they come to be connected in just those ways which give human communities traits so different from those which mark assemblies of electrons, unions of trees in forests,

swarms of insects, herds of sheep, and constellations of stars. When we consider the difference we at once come upon the fact that the consequences of conjoint action take on a new value when they are observed. For notice of the effects of connected action forces men to reflect upon the connection itself; it makes it an object of attention and interest. Each acts, in so far as the connection is known, in view of the connection. Individuals still do the thinking, desiring and purposing, but *what* they think of is the consequences of their behavior upon that of others and that of others upon themselves.

Each human being is born an infant. He is immature, helpless, dependent upon the activities of others. That many of these dependent beings survive is proof that others in some measure look out for them, take care of them. Mature and better equipped beings are aware of the consequences of their acts upon those of the young. They not only act conjointly with them, but they act in that especial kind of association which manifests interest in the consequences of their conduct upon the life and growth of the young.

Continued physiological existence of the young is only one phase of interest in the consequences of association. Adults are equally concerned to act so that the immature learn to think, feel, desire and habitually conduct themselves in certain ways. Not the least of the consequences which are striven for is that the young shall themselves learn to judge, purpose and

choose from the standpoint of associated behavior and its consequences. In fact, only too often this interest takes the form of endeavoring to make the young believe and plan just as adults do. This instance alone is enough to show that while singular beings in their singularity think, want and decide, *what* they think and strive for, the content of their beliefs and intentions is a subject-matter provided by association. Thus man is not merely *de facto* associated, but he *becomes* a social animal in the make-up of his ideas, sentiments and deliberate behavior. *What* he believes, hopes for and aims at is the outcome of association and intercourse. The only thing which imports obscurity and mystery into the influence of association upon what individual persons want and act for is the effort to discover alleged, special, original, society-making causal forces, whether instincts, fiat of will, personal, or an immanent, universal, practical reason, or an indwelling, metaphysical, social essence and nature. These things do not explain, for they are more mysterious than are the facts they are evoked to account for. The planets in a constellation would form a community if they were aware of the connections of the activities of each with those of the others and could use this knowledge to direct behavior.

We have made a digression from consideration of the state to the wider topic of society. However, the excursion enables us to distinguish the state from other forms of social life. There is an old tradition which

regards the state and completely organized society as the same thing. The state is said to be the complete and inclusive realization of all social institutions. Whatever values result from any and every social arrangement are gathered together and asserted to be the work of the state. The counterpart of this method is that philosophical anarchism which assembles all the evils that result from all forms of human grouping and attributes them *en masse* to the state, whose elimination would then bring in a millennium of voluntary fraternal organization. That the state should be to some a deity and to others a devil is another evidence of the defects of the premises from which discussion sets out. One theory is as indiscriminate as the other.

There is, however, a definite criterion by which to demarcate the organized public from other modes of community life. Friendships, for example, are non-political forms of association. They are characterized by an intimate and subtle sense of the fruits of intercourse. They contribute to experience some of its most precious values. Only the exigencies of a preconceived theory would confuse with the state that texture of friendships and attachments which is the chief bond in any community, or would insist that the former depends upon the latter for existence. Men group themselves also for scientific inquiry, for religious worship, for artistic production and enjoyment, for sport, for giving and receiving instruction, for industrial and commercial undertakings. In each case some combined or con-

joint action, which has grown up out of "natural," that is, biological, conditions and from local contiguity, results in producing distinctive consequences—that is, consequences which differ in kind from those of isolated behavior.

When these consequences are intellectually and emotionally appreciated, a shared interest is generated and the nature of the interconnected behavior is thereby transformed. Each form of association has its own peculiar quality and value, and no person in his senses confuses one with another. The characteristic of the public as a state springs from the fact that all modes of associated behavior may have extensive and enduring consequences which involve others beyond those directly engaged in them. When these consequences are in turn realized in thought and sentiment, recognition of them reacts to remake the conditions out of which they arose. Consequences have to be taken care of, looked out for. This supervision and regulation cannot be effected by the primary groupings themselves. For the essence of the consequences which call a public into being is the fact that they expand beyond those directly engaged in producing them. Consequently special agencies and measures must be formed if they are to be attended to; or else some existing group must take on new functions. The obvious external mark of the organization of a public or of a state is thus the existence of officials. Government is not the state, for that includes the public as well as the

rulers charged with special duties and powers. The public, however, is organized in and through those officers who act in behalf of its interests.

Thus the state represents an important although distinctive and restricted social interest. From this point of view there is nothing extraordinary in the preëminence of the claims of the organized public over other interests when once they are called into play, nor in its total indifference and irrelevancy to friendships, associations for science, art and religion under most circumstances. If the consequences of a friendship threaten the public, then it is treated as a conspiracy; usually it is not the state's business or concern. Men join each other in partnership as a matter of course to do a piece of work more profitably or for mutual defense. Let its operations exceed a certain limit, and others not participating in it find their security or prosperity menaced by it, and suddenly the gears of the state are in mesh. Thus it happens that the state, instead of being all absorbing and inclusive, is under some circumstances the most idle and empty of social arrangements. Nevertheless, the temptation to generalize from these instances and conclude that the state generically is of no significance is at once challenged by the fact that when a family connection, a church, a trade union, a business corporation, or an educational institution conducts itself so as to affect large numbers outside of itself, those who are affected form a public

which endeavors to act through suitable structures, and thus to organize itself for oversight and regulation.

I know of no better way in which to apprehend the absurdity of the claims which are sometimes made in behalf of society politically organized than to call to mind the influence upon community life of Socrates, Buddha, Jesus, Aristotle, Confucius, Homer, Vergil, Dante, St. Thomas, Shakespeare, Copernicus, Galileo, Newton, Boyle, Locke, Rousseau and countless others, and then to ask ourselves if we conceive these men to be officers of the state. Any method which so broadens the scope of the state as to lead to such conclusion merely makes the state a name for the totality of all kinds of associations. The moment we have taken the word as loosely as that, it is at once necessary to distinguish, within it, the state in its usual political and legal sense. On the other hand, if one is tempted to eliminate or disregard the state, one may think of Pericles, Alexander, Julius and Augustus Cæsar, Elizabeth, Cromwell, Richelieu, Napoleon, Bismarck and hundreds of names of that kind. One dimly feels that they must have had a private life, but how insignificant it bulks in comparison with their action as representatives of a state!

This conception of statehood does not imply any belief as to the propriety or reasonableness of any particular political act, measure or system. Observations of consequences are at least as subject to error and

illusion as is perception of natural objects. Judgments about what to undertake so as to regulate them, and how to do it, are as fallible as other plans. Mistakes pile up and consolidate themselves into laws and methods of administration which are more harmful than the consequences which they were originally intended to control. And as all political history shows, the power and prestige which attend command of official position render rule something to be grasped and exploited for its own sake. Power to govern is distributed by the accident of birth or by the possession of qualities which enable a person to obtain office, but which are quite irrelevant to the performance of its representative functions. But the need which calls forth the organization of the public by means of rulers and agencies of government persists and to some extent is incarnated in political fact. Such progress as political history records depends upon some luminous emergence of the idea from the mass of irrelevancies which obscure and clutter it. Then some reconstruction occurs which provides the function with organs more apt for its fulfillment. Progress is not steady and continuous. Retrogression is as periodic as advance. Industry and inventions in technology, for example, create means which alter the modes of associated behavior and which radically change the quantity, character and place of impact of their indirect consequences.

These changes are extrinsic to political forms which, once established, persist of their own momentum. The

new public which is generated remains long inchoate, unorganized, because it cannot use inherited political agencies. The latter, if elaborate and well institutionalized, obstruct the organization of the new public. They prevent that development of new forms of the state which might grow up rapidly were social life more fluid, less precipitated into set political and legal molds. To form itself, the public has to break existing political forms. This is hard to do because these forms are themselves the regular means of instituting change. The public which generated political forms is passing away, but the power and lust of possession remains in the hands of the officers and agencies which the dying public instituted. This is why the change of the form of states is so often effected only by revolution. The creation of adequately flexible and responsive political and legal machinery has so far been beyond the wit of man. An epoch in which the needs of a newly forming public are counteracted by established forms of the state is one in which there is increasing disparagement and disregard of the state. General apathy, neglect and contempt find expression in resort to various short-cuts of direct action. And direct action is taken by many other interests than those which employ "direct action" as a slogan, often most energetically by entrenched class-interests which profess the greatest reverence for the established "law and order" of the existing state. By its very nature, a state is ever something to be scrutinized, investigated, searched for. Al-

most as soon as its form is stabilized, it needs to be re-made.

Thus the problem of discovering the state is not a problem for theoretical inquirers engaged solely in surveying institutions which already exist. It is a practical problem of human beings living in association with one another, of mankind generically. It is a complex problem. It demand[s] power to perceive and recognize the consequences of the behavior of individuals joined in groups and to trace them to their source and origin. It involves selection of persons to serve as representatives of the interests created by these perceived consequences and to define the functions which they shall possess and employ. It requires institution of a government such that those having the renown and power which goes with the exercise of these functions shall employ them for the public and not turn them to their own private benefit. It is no cause for wonder, then, that states have been many, not only in number but in type and kind. For there have been countless forms of joint activity with correspondingly diverse consequences. Power to detect consequences has varied especially with the instrumentalities of knowledge at hand. Rulers have been selected on all kinds of different grounds. Their functions have varied and so have their will and zeal to represent common interests. Only the exigencies of a rigid philosophy can lead us to suppose that there is some one form or idea of The State which these protean historic states have realized in

various degrees of perfection. The only statement which can be made is a purely formal one: the state is the organization of the public effected through officials for the protection of the interests shared by its members. But what the public may be, what the officials are, how adequately they perform their function, are things we have to go to history to discover.

Nevertheless, our conception gives a criterion for determining how good a particular state is: namely, the degree of organization of the public which is attained, and the degree in which its officers are so constituted as to perform their function of caring for public interests. But there is no *a priori* rule which can be laid down and by which when it is followed a good state will be brought into existence. In no two ages or places is there the same public. Conditions make the consequences of associated action and the knowledge of them different. In addition the means by which a public can determine the government to serve its interests vary. Only formally can we say what the best state would be. In concrete fact, in actual and concrete organization and structure, there is no form of state which can be said to be the best: not at least till history is ended, and one can survey all its varied forms. The formation of states must be an experimental process. The trial process may go on with diverse degrees of blindness and accident, and at the cost of unregulated procedures of cut and try, of fumbling and groping, without insight into what men are after or clear knowledge of a good state

even when it is achieved. Or it may proceed more intelligently, because guided by knowledge of the conditions which must be fulfilled. But it is still experimental. And since conditions of action and of inquiry and knowledge are always changing, the experiment must always be retried; the State must always be rediscovered. Except, once more, in formal statement of conditions to be met, we have no idea what history may still bring forth. It is not the business of political philosophy and science to determine what the state in general should or must be. What they may do is to aid in creation of methods such that experimentation may go on less blindly, less at the mercy of accident, more intelligently, so that men may learn from their errors and profit by their successes. The belief in political fixity, of the sanctity of some form of state consecrated by the efforts of our fathers and hallowed by tradition, is one of the stumbling-blocks in the way of orderly and directed change; it is an invitation to revolt and revolution.

As the argument has moved to and fro, it will conduce to clearness to summarize its steps. Conjoint, combined, associated action is a universal trait of the behavior of things. Such action has results. Some of the results of human collective action are perceived, that is, they are noted in such ways that they are taken account of. Then there arise purposes, plans, measures and means, to secure consequences which are liked and eliminate those which are found obnoxious. Thus perception generates a common interest; that is,

those affected by the consequences are perforce concerned in conduct of all those who along with themselves share in bringing about the results. Sometimes the consequences are confined to those who directly share in the transaction which produces them. In other cases they extend far beyond those immediately engaged in producing them. Thus two kinds of interests and of measures of regulation of acts in view of consequences are generated. In the first, interest and control are limited to those directly engaged; in the second, they extend to those who do not directly share in the performance of acts. If, then, the interest constituted by their being affected by the actions in question is to have any practical influence, control over the actions which produce them must occur by some indirect means.

So far the statements, it is submitted, set forth matters of actual and ascertainable fact. Now follows the hypothesis. Those indirectly and seriously affected for good or for evil form a group distinctive enough to require recognition and a name. The name selected is The Public. This public is organized and made effective by means of representatives who as guardians of custom, as legislators, as executives, judges, etc., care for its especial interests by methods intended to regulate the conjoint actions of individuals and groups. Then and in so far, association adds to itself political organization, and something which may be government comes into being: the public is a political state.

The direct confirmation of the hypothesis is found

in the statement of the series of observable and verifiable matters of fact. These constitute conditions which are sufficient to account, so it is held, for the characteristic phenomena of political life, or state activity. If they do, it is superfluous to seek for other explanation. In conclusion, two qualifications should be added. The account just given is meant to be generic; it is consequently schematic, and omits many differential conditions, some of which receive attention in subsequent chapters. The other point is that in the negative part of the argument, the attack upon theories which would explain the state by means of special causal forces and agencies, there is no denial of causal relations or connections among phenomena themselves. That is obviously assumed at every point. There can be no consequences and measures to regulate the mode and quality of their occurrence without the causal nexus. What is denied is an appeal to *special* forces outside the series of observable connected phenomena. Such causal powers are no different in kind to the occult forces from which physical science had to emancipate itself. At best, they are but phases of the related phenomena themselves which are then employed to account for the facts. What is needed to direct and make fruitful social inquiry is a method which proceeds on the basis of the interrelations of observable acts and their results. Such is the gist of the method we propose to follow.

## CHAPTER II

### DISCOVERY OF THE STATE

If we look in the wrong place for the public we shall never locate the state. If we do not ask what are the conditions which promote and obstruct the organization of the public into a social group with definite functions, we shall never grasp the problem involved in the development and transformation of states. If we do not perceive that this organization is equivalent to the equipment of the public with official representatives to care for the interests of the public, we shall miss the clew to the nature of government. These are conclusions reached or suggested by the discussion of the last hour. The wrong place to look, as we saw, is in the realm of alleged causal agency, of authorship, of forces which are supposed to produce a state by an intrinsic *vis genetrrix*. The state is not created as a direct result of organic contacts as offspring are conceived in the womb, nor by direct conscious intent as a machine is invented, nor by some brooding indwelling spirit, whether a personal deity or a metaphysical absolute will. When we seek for the origin of states in such sources as these, a realistic regard for facts compels us to conclude in the end that we find nothing but singular persons, you, they, me. We shall then be

PUBLIC

STATE

GOV'T

driven, unless we have recourse to mysticism, to decide that the public is born in a myth and is sustained by superstition.

There are many answers to the question: What is the public? Unfortunately many of them are only restatements of the question. Thus we are told that the public is the community as a whole, and a-community-as-a-whole is supposed to be a self-evident and self-explanatory phenomenon. But a community as a *whole* involves not merely a variety of associative ties which hold persons together in diverse ways, but an organization of all elements by an integrated principle. And this is precisely what we are in search of. Why should there be anything of the nature of an all-inclusive and regulative unity? If we postulate such a thing, surely the institution which alone would answer to it is humanity, not the affairs which history exhibits as states. The notion of an inherent universality in the associative force at once breaks against the obvious fact of a plurality of states, each localized, with its boundaries, limitations, its indifference and even hostility to other states. The best that metaphysical monistic philosophies of politics can do with this fact is to ignore it. Or, as in the case of Hegel and his followers, a mythical philosophy of history is constructed to eke out the deficiencies of a mythical doctrine of statehood. The universal spirit seizes upon one temporal and local nation after another as the vehicle for its objectification of reason and will.

Such considerations as these reinforce our proposition that the perception of consequences which are projected in important ways beyond the persons and associations directly concerned in them is the source of a public; and that its organization into a state is effected by establishing special agencies to care for and regulate these consequences. But they also suggest that actual states exhibit traits which perform the function that has been stated and which serve as marks of anything to be called a state. Discussion of these traits will define the nature of the public and the problem of its political organization, and will also operate to test our theory.

PUBLIC  
STATE

We can hardly select a better trait to serve as a mark and sign of the nature of a state than a point just mentioned, temporal and geographical localization. There are associations which are too narrow and restricted in scope to give rise to a public, just as there are associations too isolated from one another to fall within the same public. Part of the problem of discovery of a public capable of organization into a state is that of drawing lines between the too close and intimate and the too remote and disconnected. Immediate contiguity, face to face relationships, have consequences which generate a community of interests, a sharing of values, too direct and vital to occasion a need for political organization. Connections within a family are familiar; they are matters of immediate acquaintance and concern. The so-called blood-tie

which has played such a part in demarcation of social units is largely imputed on the basis of sharing immediately in the results of conjoint behavior. What one does in the household affects others directly and the consequences are appreciated at once and in an intimate way. As we say, they "come home." Special organization to care for them is a superfluity. Only when the tie has extended to a union of families in a clan and of clans in a tribe do consequences become so indirect that special measures are called for. The neighborhood is constituted largely on the same pattern of association that is exemplified in the family. Custom and measures improvised to meet special emergencies as they arise suffice for its regulation.

Consider the village in Wiltshire so beautifully described by Hudson: "Each house has its center of human life with life of bird and beast, and the centers were in touch with one another, connected like a row of children linked together by their hands; all together forming one organism, instinct with one life, moved by one mind, like a many-colored serpent lying at rest, extended at full length upon the ground. I imagined the case of a cottager at one end of the village occupied in chopping up a tough piece of wood or stump and accidentally letting fall his heavy sharp axe on to his foot, inflicting a grievous wound. The tidings of the accident would fly from mouth to mouth to the other extremity of the village, a mile distant; not only would each villager quickly know of it, but have at

the same time a vivid mental image of his fellow villager at the moment of his misadventure, the sharp glittering axe falling on to his foot, the red blood flowing from the wound; and he would at the same time feel the wound in his own foot and the shock to his system. In like manner all thoughts and feelings would pass freely from one to another, though not necessarily communicated by speech; and all would be participants in virtue of that sympathy and solidarity uniting the members of a small isolated community. No one would be capable of a thought or emotion which would seem strange to the others. The temper, the mood, the outlook of the individual and the village, would be the same."<sup>1</sup> With such a condition of intimacy, the state is an impertinence.

For long periods of human history, especially in the Orient, the state is hardly more than a shadow thrown upon the family and neighborhood by remote personages, swollen to gigantic form by religious beliefs. It rules but it does not regulate; for its rule is confined to receipt of tribute and ceremonial deference. Duties are within the family; property is possessed by the family. Personal loyalties to elders take the place of political obedience. The relationships of husband and wife, parent and children, older and younger children, friend and friend, are the bonds from which authority proceeds. Politics is not a branch of morals;

<sup>1</sup> W. H. Hudson, "A Traveller in Little Things," pp. 110-112.

it is submerged in morals. All virtues are summed up in filial piety. Wrongdoing is culpable because it reflects upon one's ancestry and kin. Officials are known but only to be shunned. To submit a dispute to them is a disgrace. The measure of value of the remote and theocratic state lies in what it does *not* do. Its perfection is found in its identification with the processes of nature, in virtue of which the seasons travel their constant round, so that fields under the beneficent rule of sun and rain produce their harvest, and the neighborhood prospers in peace. The intimate and familiar propinquity group is not a social unity within an inclusive whole. It is, for almost all purposes, society itself.

At the other limit there are social groups so separated by rivers, seas and mountains, by strange languages and gods, that what one of them does—save in war—has no appreciable consequences for another. There is therefore no common interest, no public, and no need nor possibility of an inclusive state. The plurality of states is such a universal and notorious phenomenon that it is taken for granted. It does not seem to require explanation. But it sets up, as we have noted, a test difficult for some theories to meet. Except upon the basis of a freakish limitation in the common will and reason which is alleged to be the foundation of the state, the difficulty is insuperable. It is peculiar, to say the least, that universal reason should be unable to cross a mountain range and ob-

jective will be balked by a river current. The difficulty is not so great for many other theories. But only the theory which makes recognition of consequences the critical factor can find in the fact of many states a corroborating trait. Whatever is a barrier to the spread of the consequences of associated behavior by that very fact operates to set up political boundaries. The explanation is as commonplace as is the thing to be explained.

Somewhere between associations that are narrow, close and intimate and those which are so remote as to have only infrequent and casual contact lies, then, the province of a state. We do not find and should not expect to find sharp and fast demarcations. Villages and neighborhoods shade imperceptibly into a political public. Different states may pass through federations and alliances into a larger whole which has some of the marks of statehood. This condition, which we should anticipate in virtue of the theory, is confirmed by historical facts. The wavering and shifting line of distinction between a state and other forms of social union is, again, an obstacle in the way of theories of the state which imply as their concrete counterpart something as sharply marked off as is the concept. On the basis of empirical consequences, it is just the sort of thing which should occur. There are empires due to conquest where political rule exists only in forced levies of taxes and soldiers, and in which, though the word state may be used, the charac-

teristic signs of a public are notable for their absence. There are political communities like the city-states of ancient Greece in which the fiction of common descent is a vital factor, in which household gods and worship are replaced by community divinities, shrines, and cults: states in which much of the intimacy of the vivid and prompt personal touch of the family endures, while there has been added the transforming inspiration of a varied, freer, fuller life, whose issues are so momentous that in comparison the life of the neighborhood is parochial and that of the household dull.

Multiplicity and constant transformation in the forms which the state assumes are as comprehensible upon the hypothesis proposed as is the numerical diversity of independent states. The consequences of conjoint behavior differ in kind and in range with changes in "material culture," especially those involved in exchange of raw materials, finished products and above all in technology, in tools, weapons and utensils. These in turn are immediately affected by inventions in means of transit, transportation and intercommunication. A people that lives by tending flocks of sheep and cattle adapts itself to very different conditions than those of a people which ranges freely, mounted on horses. One form of nomadism is usually peaceful; the other warlike. Roughly speaking, tools and implements determine occupations, and occupations determine the consequences of associated activity. In determining consequences, they institute publics with

different interests, which exact different types of political behavior to care for them.

In spite of the fact that diversity of political forms rather than uniformity is the rule, belief in *the* state as an archetypal entity persists in political philosophy and science. Much dialectical ingenuity has been expended in construction of an essence or intrinsic nature in virtue of which any particular association is entitled to have applied to it the concept of statehood. Equal ingenuity has been expended in explaining away all divergencies from this morphological type, and (the favored device) in ranking states in a hierarchical order of value as they approach the defining essence. The idea that there is a model pattern which makes a state a *good* or true state has affected practice as well as theory. It, more than anything else, is responsible for the effort to form constitutions offhand and impose them ready-made on peoples. Unfortunately, when the falsity of this view was perceived, it was replaced by the idea that states "grow" or develop instead of being made. This "growth" did not mean simply that states alter. Growth signified an evolution through regular stages to a predetermined end because of some intrinsic natus or principle. This theory discouraged recourse to the only method by which alterations of political forms might be directed: namely, the use of intelligence to judge consequences. Equally with the theory which it displaced, it presumed the existence of a single standard form which defines *the* state as the essential

and true article. After a false analogy with physical science, it was asserted that only the assumption of such a uniformity of process renders a "scientific" treatment of society possible. Incidentally, the theory flattered the conceit of those nations which, being politically "advanced," assumed that they were so near the apex of evolution as to wear the crown of statehood.

The hypothesis presented makes possible a consistently empirical or *historical* treatment of the changes in political forms and arrangements, free from any overriding conceptual domination such as is inevitable when a "true" state is postulated, whether that be thought of as deliberately made or as evolving by its own inner law. Intrusions from non-political internal occurrences, industrial and technological, and from external events, borrowings, travel, migrations, explorations, wars, modify the consequences of preëxisting associations to such an extent that new agencies and functions are necessitated. Political forms are also subject to alterations of a more indirect sort. Developments of better methods of thinking bring about observation of consequences which were concealed from a vision which used coarser intellectual tools. Quickened intellectual insight also makes possible invention of new political devices. Science has not indeed played a large rôle. But intuitions of statesmen and of political theorists have occasionally penetrated into the operations of social forces in such a way that a new turn has been given to legislation

and to administration. There is a margin of toleration in the body politic as well as in an organic body. Measures not in any sense inevitable are accommodated to after they have once been taken; and a further diversity is thereby introduced in political manners.

In short, the hypothesis which holds that publics are constituted by recognition of extensive and enduring indirect consequences of acts accounts for the relativity of states, while the theories which define them in terms of specific causal authorship imply an absoluteness which is contradicted by facts. The attempt to find by the "comparative method" structures which are common to antique and modern, to occidental and oriental states, has involved a great waste of industry. The only constant is the function of caring for and regulating the interests which accrue as the result of the complex indirect expansion and radiation of conjoint behavior.

We conclude, then, that temporal and local diversification is a prime mark of political organization, and one which, when it is analyzed, supplies a confirming test of our theory. A second mark and evidence is found in an otherwise inexplicable fact that the quantitative scope of results of conjoint behavior generates a public with need for organization. As we already noted, what are now crimes subject to public cognizance and adjudication were once private ebullitions, having the status now possessed by an insult proffered by one to another. An interesting phase of the transition from

the relatively private to the public, at least from a limited public to a larger one, is seen in the development in England of the King's Peace. Justice until the twelfth century was administered mainly by feudal and shire courts, courts of hundreds, etc. Any lord who had a sufficient number of subjects and tenants decided controversies and imposed penalties. The court and justice of the king was but one among many, and primarily concerned with royalty's tenants, servants, properties and dignities. The monarchs wished, however, to increase their revenues and expand their power and prestige. Various devices were invented and fictions set up by means of which the jurisdiction of kingly courts was extended. The method was to allege that various offenses, formerly attended to by local courts, were infractions of the king's peace. The centralizing movement went on till the king's justice had a monopoly. The instance is significant. A measure instigated by desire to increase the power and profit of the royal dynasty became an impersonal public function by bare extension. The same sort of thing has repeatedly occurred when personal prerogatives have passed into normal political processes. Something of the same sort is manifested in contemporary life when modes of private business become "affected with a public interest" because of quantitative expansion.

A converse instance is presented in transfer from public to private domain of religious rites and beliefs.

As long as the prevailing mentality thought that the consequences of piety and irreligion affected the entire community, religion was of necessity a public affair. Scrupulous adherence to the customary cult was of the highest political import. Gods were tribal ancestors or founders of the community. They granted communal prosperity when they were duly acknowledged and were the authors of famine, pestilence and defeat in war if their interests were not zealously attended to. Naturally when religious acts had such extended consequences, temples were public buildings, like the agora and forum; rites were civic functions and priests public officials. Long after theocracy vanished, theurgy was a political institution. Even when disbelief was rife, few there were who would run the risk of neglecting the ceremonials.

The revolution by which piety and worship were relegated to the private sphere is often attributed to the rise of personal conscience and assertion of its rights. But this rise is just the thing to be accounted for. The supposition that it was there all the time in a submerged condition and finally dared to show itself reverses the order of events. Social changes, both intellectual and in the internal composition and external relations of peoples, took place so that men no longer connected attitudes of reverence or disrespect to the gods with the weal and woe of the community. Faith and unbelief still had serious consequences, but these were now thought to be confined to the temporal

and eternal happiness of the persons directly concerned. Given the other belief, and persecution and intolerance are as justifiable as is organized hostility to any crime; impiety is the most dangerous of all threats to public peace and well-being. But social changes gradually effected as one of the new functions of the life of the community the rights of private conscience and creed.

In general, behavior in intellectual matters has moved from the public to the private realm. This radical change was, of course, urged and justified on the ground of intrinsic and sacred private right. But, as in the special case of religious beliefs, it is strange, if this reason be accepted, that mankind lived so long in total unawareness of the existence of the right. In fact, the idea of a purely private area of consciousness, where whatever goes on has no external consequences, was in the first instance a product of institutional change, political and ecclesiastic, although, like other beliefs, once it was established it had political results. The observation that the interests of the community are better cared for when there is permitted a large measure of personal judgment and choice in the formation of intellectual conclusions, is an observation which could hardly have been made until social mobility and heterogeneity had brought about initiation and invention in technological matters and industry, and until secular pursuits had become formidable rivals to church and state. Even yet, however, toleration in matters of

judgment and belief is largely a negative matter. We agree to leave one another alone (within limits) more from recognition of evil consequences which have resulted from the opposite course rather than from any profound belief in its positive social beneficence. As long as the latter consequence is not widely perceived, the so-called natural right to private judgment will remain a somewhat precarious rationalization of the moderate amount of toleration which has come into being. Such phenomena as the Ku Klux and legislative activity to regulate science show that the belief in liberty of thought is still superficial.

If I make an appointment with a dentist or doctor, the transaction is primarily between us. It is my health which is affected and his pocket-book, skill and reputation. But exercise of the professions has consequences so wide-spread that the examination and licensing of persons who practice them becomes a public matter. John Smith buys or sells real estate. The transaction is effected by himself and some other person. Land, however, is of prime importance to society, and the private transaction is hedged about with legal regulations; evidence of transfer and ownership has to be recorded with a public official in forms publicly prescribed. The choice of a mate and the act of sexual union are intimately personal. But the act is the condition of bearing of offspring who are the means of the perpetuation of the community. The public interest is manifested in formalities which are necessary

to make a union legal and for its legal termination. Consequences, in a word, affect large numbers beyond those immediately concerned in the transaction. It is often thought that in a socialistic state the formation and dissolution of marriages would cease to have a public phase. It is possible. But it is also possible that such a state would be even more alive than is the community at present to the consequences of the union of man and woman not only upon children but upon its own well-being and stability. In that case certain regulations would be relaxed, but there might be imposed stringent rules as to health, economic capacity and psychologic compatibility as preconditions of wedlock.

No one can take into account all the consequences of the acts he performs. It is a matter of necessity for him, as a rule, to limit his attention and foresight to matters which, as we say, are distinctively his own business. Any one who looked too far abroad with regard to the outcome of what he is proposing to do would, if there were no general rules in existence, soon be lost in a hopelessly complicated muddle of considerations. The man of most generous outlook has to draw the line somewhere, and he is forced to draw it in whatever concerns those closely associated with himself. In the absence of some objective regulation, effects upon them are all he can be sure of in any reasonable degree. Much of what is called selfishness is but the outcome of limitation of observation and

imagination. Hence when consequences concern a large number, a number so mediately involved that a person cannot readily prefigure how they are to be affected, that number is constituted a public which intervenes. It is not merely that the combined observations of a number cover more ground than those of a single person. It is rather that the public itself, being unable to forecast and estimate all consequences, establishes certain dikes and channels so that actions are confined within prescribed limits, and insofar have moderately predictable consequences.

The regulations and laws of the state are therefore misconceived when they are viewed as commands. The "command" theory of common and statute law is in reality a dialectical consequence of the theories, previously criticized, which define the state in terms of an antecedent causation, specifically of that theory which takes "will" to be the causal force which generates the state. If a will is the origin of the state, then state-action expresses itself in injunctions and prohibitions imposed by its will upon the wills of subjects. Sooner or later, however, the question arises as to the justification of the will which issues commands. Why should the will of the rulers have more authority than that of others? Why should the latter submit? The logical conclusion is that the ground of obedience lies ultimately in superior force. But this conclusion is an obvious invitation to trial of forces to see where superior force lies. In fact the idea of authority is abol-

ished, and that of force substituted. The next dialectical conclusion is that the will in question is something over and above any private will or any collection of such wills: is some overruling "general will." This conclusion was drawn by Rousseau, and under the influence of German metaphysics was erected into a dogma of a mystic and transcendent absolute will, which in turn was not another name for force only because it was identified with absolute reason. The alternative to one or other of these conclusions is surrender of the causal authorship theory and the adoption of that of widely distributed consequences, which, when they are perceived, create a common interest and the need of special agencies to care for it.

Rules of law are in fact the institution of conditions under which persons make their arrangements with one another. They are structures which canalize action; they are active forces only as are banks which confine the flow of a stream, and are commands only in the sense in which the banks command the current. If individuals had no stated conditions under which they come to agreement with one another, any agreement would either terminate in a twilight zone of vagueness or would have to cover such an enormous amount of detail as to be unwieldy and unworkable. Each agreement, moreover, might vary so from every other that nothing could be inferred from one arrangement as to the probable consequences of any other. Legal rules state certain conditions which when met make an agree-

ment a contract. The terms of the agreement are thereby canalized within manageable limits, and it is possible to generalize and predict from one to another. Only the exigencies of a theory lead one to hold that there is a command that an agreement be made in such and such a form.<sup>2</sup> What happens is that certain conditions are set such that *if* a person conform to them, he can count on certain consequences, while if he fails to do so he cannot forecast consequences. He takes a chance and runs the risk of having the whole transaction invalidated to his loss. There is no reason to interpret even the "prohibitions" of criminal law in any other way. Conditions are stated in reference to consequences which may be incurred if they are infringed or transgressed. We can similarly state the undesirable results which will happen if a stream breaks through its banks; if the stream were capable of foreseeing these consequences and directing its behavior by the foresight, we might metaphorically construe the banks as issuing a prohibition.

This account explains both the large arbitrary and contingent element in laws and their plausible identification with reason, dissimilar as are the two considerations. There are many transactions in which the thing of chief importance is that consequences be determinate in *some* fashion rather than that they be deter-

<sup>2</sup> Judges make rules of law. On the "will" theory this is an encroachment on the legislative function. Not so, if the judges further define conditions of action.

mined by some inherent principle to be just such and such. In other words, within limits it is indifferent what results are fixed by the conditions settled upon; what is important is that the consequences be certain enough to be predictable. The rule of the road is typical of a large number of rules. So is the fixing of sunset or of a specified hour as the exact time when the felonious entering of the premises of another takes on a more serious quality. On the other hand, rules of law are reasonable so that "reason" is appealed to by some as their fount and origin on the ground pointed out by Hume.<sup>3</sup> Men are naturally shortsighted, and the shortsightedness is increased and perverted by the influence of appetite and passion. "The law" formulates remote and long-run consequences. It then operates as a condensed available check on the naturally overweening influence of immediate desire and interest over decision. It is a means of doing for a person what otherwise only his own foresight, if thoroughly reasonable, could do. For a rule of law, although it may be laid down because of a special act as its occasion, is formulated in view of an indefinite variety of other possible acts. It is necessarily a generalization; for it is generic as to the predictable consequences of a *class* of facts. If the incidents of a particular occasion exercise undue influence upon the content of a rule of law, it will soon be

<sup>3</sup> "A Treatise on Human Nature," Part II, sec. vii.

overruled, either explicitly or by neglect. Upon this theory, the law as "embodied reason" means a formulated generalization of means and procedures in behavior which are adapted to secure what is wanted. Reason expresses a function, not a causal origin. Law is reasonable as a man is sensible who selects and arranges conditions adapted to produce the ends he regards as desirable. A recent writer, who regards "reason" as that which generates laws, says, "A debt does not in reason cease to be a debt because time has passed, but the law sets up a limitation. A trespass does not cease in reason to be a trespass because it is indefinitely repeated, yet the law shows a tendency to admit an unresisted trespass in time to the status of right. Time, distance and chance are indifferent to pure reason; but they play their part in the legal order."<sup>4</sup> But if reasonableness is a matter of adaptation of means to consequences, time and distance are things to be given great weight; for they effect both consequences and the ability to foresee them and to act upon them. Indeed, we might select statutes of limitation as excellent examples of the kind of rationality the law contains. Only if reason is looked upon as "pure," that is as a matter of formal logic, do the instances cited manifest limitation of reason.

A third mark of the public organized as a state, a mark which also provides a test of our hypothesis, is

<sup>4</sup> Hocking, "Man and the State," p. 51.

that it is concerned with modes of behavior which are old and hence well established, engrained. Invention is a peculiarly personal act, even when a number of persons combine to make something new. A novel idea is the kind of thing that has to occur to somebody in the singular sense. A new project is something to be undertaken and set agoing by private initiative. The newer an idea or plan, the more it deviates from what is already recognized and established in practice. By the nature of the case an innovation is a departure from the customary. Hence the resistance it is likely to encounter. We, to be sure, live in an era of discoveries and inventions. Speaking generically, innovation itself has become a custom. Imagination is wonted to it; it is expected. When novelties take the form of mechanical appliances, we incline to welcome them. But this is far from always having been the case. The rule has been to look with suspicion and greet with hostility the appearance of anything new, even a tool or utensil. For an innovation is a departure, and one which brings in its train some incalculable disturbance of the behavior to which we have grown used and which seems "natural." As a recent writer has clearly shown, inventions have made their way insidiously; and because of some immediate convenience. If their effects, their long-run consequences, in altering habits of behavior had been foreseen, it is safe to say that most of them would have been destroyed as wicked, just as

many of them were retarded in adoption because they were felt to be sacrilegious.<sup>5</sup> In any case, we cannot think of their invention being the work of the state.<sup>6</sup>

The organized community is still hesitant with reference to new ideas of a non-technical and non-technological nature. They are felt to be disturbing to social behavior; and rightly so, as far as old and established behavior is concerned. Most persons object to having their habits unsettled, their habits of belief no less than habits of overt action. A new idea *is* an unsettling of received beliefs; otherwise, it would not be a new idea. This is only to say that the production of new ideas is peculiarly a private performance. About the most we can ask of the state, judging from states which have so far existed, is that it put up with their production by private individuals without undue meddling. A state which will organize to manufacture and disseminate new ideas and new ways of thinking may come into existence some time, but such a state is a matter of faith, not sight. When it comes it will arrive because the beneficial consequences of new ideas have become an article of common faith and repute. It may, indeed, be said that even now the state provides those condi-

<sup>5</sup> Ayers, "Science: The False Messiah," Chapter IV, The Lure of Machinery.

<sup>6</sup> The one obvious exception concerns the tools of waging war. With respect to them, the state has often shown itself as greedy as it has been reluctant and behindhand with reference to other inventions.

tions of security which are necessary if private persons are to engage effectually in discovery and invention. But this service is a by-product; it is foreign to the grounds on which the conditions in question are maintained by the public. And it must be offset by noting the extent to which the state of affairs upon which the public heart is most set is unfavorable to thinking in other than technical lines. In any case, it is absurd to expect the public, because it is called in no matter how eulogistic a sense the state, to rise above the intellectual level of its average constituents.

When, however, a mode of behavior has become old and familiar, and when an instrumentality has come into use as a matter of course, provided it is a prerequisite of other customary pursuits, it tends to come within the scope of the state. An individual may make his own track in a forest; but highways are usually public concerns. Without roads which one is free to use at will, men might almost as well be castaways on a desert island. Means of transit and communication affect not only those who utilize them but all who are dependent in any way upon what is transported, whether as producers or consumers. The increase of easy and rapid intercommunication means that production takes place more and more for distant markets and it puts a premium upon mass-production. Thus it becomes a disputed question whether railroads as well as highways should not be administered by public officials, and in any case some measure

of official regulation is instituted, as they become settled bases of social life.

The tendency to put what is old and established in uniform lines under the regulation of the state has psychological support. Habits economize intellectual as well as muscular energy. They relieve the mind from thought of means, thus freeing thought to deal with new conditions and purposes. Moreover, interference with a well-established habit is followed by uneasiness and antipathy. The efficiency of liberation from attention to whatever is regularly recurrent is reinforced by an emotional tendency to get rid of bother. Hence there is a general disposition to turn over activities which have become highly standardized and uniform to representatives of the public. It is possible that the time will come when not only railways will have become routine in their operation and management, but also existing modes of machine production, so that business men instead of opposing public ownership will clamor for it in order that they may devote their energies to affairs which involve more novelty, variation and opportunities for risk and gain. They might conceivably, even under a régime of continued private property in general, no more wish to be bothered with routinized operations than they would want to take over the care of public streets. Even now the question of the public's taking charge of the machinery of the manufacture of goods is less a matter of wholesale "individualism" versus "socialism" than it is of the ratio of the

experimental and novel in their management to the habitual and matter-of-course; of that which is taken for granted as a condition of other things to that which is significant in its own operation.

A fourth mark of the public is indicated by the idea that children and other dependents (such as the insane, the permanently helpless) are peculiarly its wards. When the parties involved in any transaction are unequal in status, the relationship is likely to be one-sided, and the interests of one party to suffer. If the consequences appear serious, especially if they seem to be irretrievable, the public brings to bear a weight that will equalize conditions. Legislatures are more ready to regulate the hours of labor of children than of adults, of women than of men. In general, labor legislation is justified against the charge that it violates liberty of contract on the ground that the economic resources of the parties to the arrangement are so disparate that the conditions of a genuine contract are absent; action by the state is introduced to form a level on which bargaining takes place. Labor unions often object, however, to such "paternalistic" legislation on the ground that voluntary combinations to ensure collective bargaining is better for those concerned than action taken without the active participation of laborers. The general objection that paternalism tends to keep those affected by it permanently in the status of children, without an impetus to help themselves, rests on the same basis. The difference here is nevertheless not as

to the principle that inequality of status may call for public intervention, but as to the best means of securing and maintaining equality.

There has been a steady tendency for the education of children to be regarded as properly a state charge in spite of the fact that children are primarily the care of a family. But the period in which education is possible to an effective degree is that of childhood; if this time is not taken advantage of the consequences are irreparable. The neglect can rarely be made up later. In the degree, then, that a certain measure of instruction and training is deemed to have significant consequences for the social body, rules are laid down affecting the action of parents in relation to their children, and those who are not parents are taxed—Herbert Spencer to the contrary notwithstanding—to maintain schools. Again, the consequences of neglect of safeguards in industries involving machines which are dangerous and those presenting unhygienic conditions, are so serious and irretrievable that the modern public has intervened to maintain conditions conducive to safety and health. Movements which aim at insurance against illness and old-age under governmental auspices illustrate the same principle. While public regulation of a minimum wage is still a disputed matter, the argument in behalf of it appeals to the criterion stated. The argument in effect is that a living wage is a matter of such serious indirect consequences to society that it cannot be safely left to the parties directly con-

cerned, owing to the fact that immediate need may incapacitate one party to the transaction from effective bargaining.

In what has been said there is no attempt to lay down criteria to be applied in a predetermined way to ensure just such and such results. We are not concerned to predict the special forms which state action will take in the future. We have simply been engaged in pointing out the marks by which public action as distinct from private is characterized. Transactions between singular persons and groups bring a public into being when their indirect consequences—their effects beyond those immediately engaged in them—are of importance. Vagueness is not eliminated from the idea of importance. But at least we have pointed out some of the factors which go to make up importance: namely, the far-reaching character of consequences, whether in space or time; their settled, uniform and recurrent nature, and their irreparableness. Each one of these matters involves questions of degree. There is no sharp and clear line which draws itself, pointing out beyond peradventure, like the line left by a receding high tide, just where a public comes into existence which has interests so significant that they must be looked after and administered by special agencies, or governmental officers. Hence there is often room for dispute. The line of demarcation between actions left to private initiative and manage-

ment and those regulated by the state has to be discovered experimentally.

As we shall see later, there are assignable reasons why it will be drawn very differently at different times and places. The very fact that the public depends upon consequences of acts and the perception of consequences, while its organization into a state depends upon the ability to invent and employ special instrumentalities, shows how and why publics and political institutions differ widely from epoch to epoch and from place to place. To suppose that an *a priori* conception of the intrinsic nature and limits of the individual on one side and the state on the other will yield good results once for all is absurd. If, however, the state has a definite nature, as it should have if it were formed by fixed causal agencies, or if individuals have a nature fixed once for all apart from conditions of association, a final and wholesale partitioning of the realms of personal and state activity is the logical conclusion. The failure of such a theory to reach practical solutions is, therefore, a further confirmation of the theory which emphasizes the consequences of activity as the essential affair.

In conclusion, we shall make explicit what has been implied regarding the relation to one another of public, government and state.<sup>7</sup> There have been two extreme

<sup>7</sup> This is a convenient place for making explicit a qualification which has to be understood throughout but which is slighted in the text. The words "government" and "officers" are taken

views about this point. On one hand, the state has been identified with government. On the other hand, the state, having a necessary existence of its own, *per se*, is said then to proceed to form and employ certain agencies forming government, much as a man hires servants and assigns them duties. The latter view is appropriate when the causal agency theory is relied upon. Some force, whether a general will or the singular wills of assembled individuals, calls the state into being. Then the latter as a secondary operation chooses certain persons through whom to act. Such a theory helps those who entertain it to retain the

functionally, not in terms of some particular structure which is so familiar to us that it leaps to the eyes when these words are used. Both words in their functional meaning are much wider in application than what is meant when we speak, say, of the government and officers of Great Britain or the United States. In households, for example, there have usually been rule and "heads"; the parents, for most purposes the father, have been officers of the family interest. The "patriarchal family" presents an emphatic intensification, on account of comparative isolation of the household from other social forms, of what exists in lesser degree in almost all families. The same sort of remark applies to the use of the term "states," in connection with publics. The text is concerned with modern conditions, but the hypothesis propounded is meant to hold good generally. So to the patent objection that the state is a very modern institution, it is replied that while modernity is a property of those *structures* which go by the name of states, yet all history, or almost all, records the exercise of analogous *functions*. The argument concerns these functions and the mode of their operation, no matter what word be used, though for the sake of brevity the word "state," like the words "government" and "officer," has been freely employed.

idea of the inherent sanctity of the state. Concrete political evils such as history exhibits in abundance can be laid at the door of fallible and corrupt governments, while the state keeps its honor unbesmirched. The identification of the state with government has the advantage of keeping the mind's eye upon concrete and observable facts; but it involves an unaccountable separation between rulers and people. If a government exists by itself and on its own account, why should there be government? Why should there persist the habits of loyalty and obedience which permit it to rule?

The hypothesis which has been advanced frees us from the perplexities which cluster about both of these two notions. The lasting, extensive and serious consequences of associated activity bring into existence a public. In itself it is unorganized and formless. By means of officials and their special powers it becomes a state. A public articulated and operating through representative officers is the state; there is no state without a government, but also there is none without the public. The officers are still singular beings, but they exercise new and special powers. These may be turned to their private account. Then government is corrupt and arbitrary. Quite apart from deliberate graft, from using unusual powers for private glorification and profit, density of mind and pomposity of behavior, adherence to class-interest and its prejudices, are strengthened by position. "Power is poison" was

the remark of one of the best, shrewdest and most experienced observers of Washington politicians. On the other hand, occupancy of office may enlarge a man's views and stimulate his social interest so that he exhibits as a statesman traits foreign to his private life.

But since the public forms a state only by and through officials and their acts, and since holding official position does not work a miracle of transubstantiation, there is nothing perplexing nor even discouraging in the spectacle of the stupidities and errors of political behavior. The facts which give rise to the spectacle should, however, protect us from the illusion of expecting extraordinary change to follow from a mere change in political agencies and methods. Such a change sometimes occurs, but when it does, it is because the social conditions, in generating a new public, have prepared the way for it; the state sets a formal seal upon forces already in operation by giving them a defined channel through which to act. Conceptions of "The State" as something *per se*, something intrinsically manifesting a general will and reason, lend themselves to illusions. They make such a sharp distinction between *the* state and *a* government that, from the standpoint of the theories, a government may be corrupt and injurious and yet The State by the same idea retain its inherent dignity and nobility. Officials may be mean, obstinate, proud and stupid and yet the nature of the state which they serve remain es-

entially unimpaired. Since, however, a public is organized into a state through its government, the state is as its officials are. Only through constant watchfulness and criticism of public officials by citizens can a state be maintained in integrity and usefulness.

The discussion also returns with some added illumination to the problem of the relation of state and society. The problem of the relation of individuals to associations—sometimes posed as the relation of *the* individual to society—is a meaningless one. We might as well make a problem out of the relation of the letters of an alphabet to the alphabet. An alphabet *is* letters, and “society” is individuals in their connections with one another. The mode of combination of letters with one another is obviously a matter of importance; letters form words and sentences when combined, and have no point nor sense except in some combination. I would not say that the latter statement applies literally to individuals, but it cannot be gainsaid that singular human beings exist and behave in constant and varied association with one another. These modes of conjoint action and their consequences profoundly affect not only the outer habits of singular persons, but their dispositions in emotion, desire, planning and valuing.

“Society,” however, is either an abstract or a collective noun. In the concrete, there are societies, associations, groups of an immense number of kinds, having different ties and instituting different interests. They may be gangs, criminal bands; clubs for sport, sociabil-

ity and eating; scientific and professional organizations; political parties and unions within them; families; religious denominations, business partnerships and corporations; and so on in an endless list. The associations may be local, nation-wide and trans-national. Since there is no one *thing* which may be called society, except their indefinite overlapping, there is no unqualified eulogistic connotation adhering to the term "society." Some societies are in the main to be approved; some to be condemned, on account of their consequences upon the character and conduct of those engaged in them and because of their remoter consequences upon others. All of them, like all things human, are mixed in quality; "society" is something to be approached and judged critically and discriminatingly. "Socialization" of some sort—that is, the reflex modification of wants, beliefs and work because of share in a united action—is inevitable. But it is as marked in the formation of frivolous, dissipated, fanatical, narrow-minded and criminal persons as in that of competent inquirers, learned scholars, creative artists and good neighbors.

Confining our notice to the results which are desirable, it appears that there is no reason for assigning all the values which are generated and maintained by means of human associations to the work of states. Yet the same unbridled generalizing and fixating tendency of the mind which leads to a monistic fixation of society has extended beyond the hypostatizing of "society"

and produced a magnified idealization of The State. All values which result from any kind of association are habitually imputed by one school of social philosophers to the state. Naturally the result is to place the state beyond criticism. Revolt against the state is then thought to be the one unforgivable social sin. Sometimes the deification proceeds from a special need of the time, as in the cases of Spinoza and Hegel. Sometimes it springs from a prior belief in universal will and reason and a consequent need of finding some empirical phenomena which may be identified with the externalization of this absolute spirit. Then this is employed, by circular logic, as evidence for the existence of such a spirit. The net import of our discussion is that a state is a distinctive and secondary form of association, having a specifiable work to do and specified organs of operation.

It is quite true that most states, after they have been brought into being, react upon the primary groupings. When a state is a good state, when the officers of the public genuinely serve the public interests, this reflex effect is of great importance. It renders the desirable associations solider and more coherent; indirectly it clarifies their aims and purges their activities. It places a discount upon injurious groupings and renders their tenure of life precarious. In performing these services, it gives the individual members of valued associations greater liberty and security: it relieves them of hampering conditions which if they had

to cope with personally would absorb their energies in mere negative struggle against evils. It enables individual members to count with reasonable certainty upon what others will do, and thus facilitates mutually helpful coöperations. It creates respect for others and for one's self. A measure of the goodness of a state is the degree in which it relieves individuals from the waste of negative struggle and needless conflict and confers upon him positive assurance and reënforcement in what he undertakes. This is a great service, and there is no call to be niggardly in acknowledging the transformations of group and personal action which states have historically effected.

But this recognition cannot be legitimately converted into the monopolistic absorption of all associations into The State, nor of all social values into political value. The all-inclusive nature of the state signifies only that officers of the public (including, of course, law-makers) may act so as to fix conditions under which *any* form of association operates; its comprehensive character refers only to the impact of its behavior. A war like an earthquake may "include" in its consequences all elements in a given territory, but the inclusion is by way of effects, not by inherent nature or right. A beneficent law, like a condition of general economic prosperity, may favorably affect all interests in a particular region, but it cannot be called a whole of which the elements influenced are parts. Nor can the liberating and confirming results of public

action be construed to yield a wholesale idealization of states in contrast with other associations. For state activity is often injurious to the latter. One of the chief occupations of states has been the waging of war and the suppression of dissentient minorities. Moreover, their action, even when benign, presupposes values due to non-political forms of living together which are but extended and reënforced by the public through its agents.

The hypothesis which we have supported has obvious points of contact with what is known as the pluralistic conception of the state. It presents also a marked point of difference. Our doctrine of plural forms is a statement of a fact: that there exist a plurality of social groupings, good, bad and indifferent. It is not a doctrine which prescribes inherent limits to state action. It does not intimate that the function of the state is limited to settling conflicts among other groups, as if each one of them had a fixed scope of action of its own. Were that true, the state would be only an umpire to avert and remedy trespasses of one group upon another. Our hypothesis is neutral as to any general, sweeping implications as to how far state activity may extend. It does not indicate any particular polity of public action. At times, the consequences of the conjoint behavior of some persons may be such that a large public interest is generated which can be fulfilled only by laying down conditions which involve a large measure of reconstruction within that group.

There is no more an inherent sanctity in a church, trade-union, business corporation, or family institution than there is in the state. Their value is also to be measured by their consequences. The consequences vary with concrete conditions; hence at one time and place a large measure of state activity may be indicated and at another time a policy of quiescence and *laissez-faire*. Just as publics and states vary with conditions of time and place, so do the concrete functions which should be carried on by states. There is no antecedent universal proposition which can be laid down because of which the functions of a state should be limited or should be expanded. Their scope is something to be critically and experimentally determined.